

Building (Minor Works) Regulation

(Cap. 123, section 38)

(Enacting provision omitted—E.R. 2 of 2012)

[30 December 2009] *L.N. 248 of 2009*

(Format changes—E.R. 2 of 2012)

Part 1

Preliminary

1. *(Omitted as spent—E.R. 2 of 2012)*

2. **Interpretation**

(1) In this Regulation—

authorized signatory (獲授權簽署人), in relation to any type of minor works under any class, means a person—

- (a) whose name is entered in the register as an authorized signatory of a registered minor works contractor for that type of minor works under section 12(7)(a)(ii), 19(4)(a)(ii), 23(7)(a)(ii) or 25(7); or
- (b) whose name is entered in the provisional register as an authorized signatory of a registered minor works contractor for that type of minor works under section 65(5)(a)(ii);

designated exempted works (指定豁免工程)—see sections 5 and 72; *(L.N. 60 of 2020)*

designated trade division (指定工種分項) has the meaning given by section 2(1) of the Construction Workers Registration Ordinance (Cap. 583); (22 of 2014 s. 42)

disciplinary order (紀律制裁命令) means an order made under section 13(4) of the Ordinance;

prescribed fee (訂明費用), in relation to a matter, means a fee imposed in respect of that matter by the regulation made under section 38(1A) of the Ordinance;

prescribed plans and details (訂明圖則及詳圖) means the plans and details prescribed in regulation 8 of the Building (Administration) Regulations (Cap. 123 sub. leg. A);

provisional register (臨時名冊) means the provisional register of minor works contractors kept under section 8A(1)(c) of the Ordinance;

register (名冊) means the register of minor works contractors kept under section 8A(1)(c) of the Ordinance;

Registration Committee (註冊事務委員會) means a Minor Works Contractors Registration Committee appointed under section 6(1);

technical memorandum (技術備忘錄) means a technical memorandum issued under section 39A of the Ordinance.

(22 of 2014 s. 42)

(2) Subject to subsection (5), in this Regulation— (L.N. 60 of 2020)

(a) **class I minor works** (第I級別小型工程) means any item of minor works specified in Division 1 of Part 3 of Schedule 1;

(b) **class II minor works** (第II級別小型工程) means any item of minor works specified in Division 2 of Part 3 of Schedule 1;

- (c) ***class III minor works*** (第III級別小型工程) means any item of minor works specified in Division 3 of Part 3 of Schedule 1,
- and a reference to class, class I, class II or class III is to be construed accordingly.
- (3) Subject to subsection (5), in this Regulation— (*L.N. 60 of 2020*)
- (a) a reference to an item of minor works is a reference to the building works specified in column 2 of Part 3 of Schedule 1 opposite the item number in column 1 of that Part; and
- (b) a reference to item is to be construed accordingly.
- (4) Subject to subsection (5), in this Regulation— (*L.N. 60 of 2020*)
- (a) a reference to a type of minor works is a reference to the item or items of minor works under different classes specified in Part 2 of Schedule 1 under a Division heading referring to that type of minor works; and
- (b) a reference to type is to be construed accordingly.
- (5) For any building works to which Part 11 applies, subsections (2), (3) and (4) have effect subject to that Part. (*L.N. 60 of 2020*)
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